

VCL303019 MPLI Capital Holdings IV vs. Arauz, Reynaldo

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-24

Motion: Motion for Entry of Judgment Pursuant to Settlement

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Re: MPLI Capital Holdings IV vs. Arauz, Reynaldo

Case No.: VCL303019

Date: August 24, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Entry of Judgment Pursuant to Settlement

Tentative Ruling: To grant the motion and enter judgment as requested.

Facts

In this matter, Plaintiff filed a notice of conditional settlement on May 14, 2024 indicating that them attor would be dismissed no later than August 15, 2026.

This matter does not appear to have been dismissed.

On June 9, 2026, Plaintiff filed this motion to enter judgment pursuant to a settlement agreement. Plaintiff indicates that Plaintiff and Defendant settled the case by entering into a written settlement agreement whereby Defendant acknowledges the principal amount of \$10,749.99 and that the parties agreed that no judgment would be entered against Defendant so long as Defendant paid an agreed settlement amount in certain monthly installments of \$450 commencing March 15, 2024 through January 15, 2026 and a final payment of \$399.99 on February 15, 2026.

In the event of default, the settlement agreement indicates that Plaintiff is entitled to entry of judgment for the judgment amount noted above, less any credits. The agreement indicates that the Court shall retain jurisdiction under Code of Civil Procedure section 664.6.

Plaintiff indicates that Defendant made payments totaling \$2,250.

Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) "Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

As indicated above, the Court retains jurisdiction over the parties and this matter and therefore is prepared to "enter judgment pursuant to the terms of the settlement."

Defendant appears to have breached the settlement, based upon the declaration of Plaintiff's counsel and, the Court, having no opposition, grants the motion and enters judgment in the amount requested of \$9,124.99 consisting of the \$10,749.99 principal amount, less \$2,250 in payments made plus \$625 in court costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.